

STATE OF NEW YORK

233--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. EACHUS, COLTON, BUTTENSCHON, DeSTEFANO, JENSEN, SAYEGH, SANTABARBARA, LEMONDES, McDONOUGH, TAYLOR, GIBBS -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a task force on safety in school transportation; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The education law is amended by adding a new section 3639 to read as follows:

§ 3639. Task force on safety in school transportation. 1. There is hereby created a task force on safety in school transportation with the purpose of reviewing and promoting safety in school transportation.

2. The task force shall consist of eighteen members appointed as follows: five members appointed by the governor, five members appointed by the temporary president of the senate, and five members appointed by the speaker of the assembly. The task force shall also include the commissioner or the commissioner's designee; the commissioner of transportation or such commissioner's designee; and the commissioner of the department of motor vehicles or such commissioner's designee. The members appointed to the task force shall include, but not be limited to: education and community stakeholders; parents; teachers; administrators; and school bus drivers and other school bus personnel who are members of a labor union.

3. It shall be the duty of the task force to study and issue recommendations related to student safety in school transportation. The task force shall review and make recommendations on:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 a. existing state laws, regulations, and programs that address school
2 bus safety, and make recommendations for their improvement, including
3 any recommendations necessary to ensure pedestrian safety and the safety
4 of students;

5 b. examining the possibility of requiring a state department or office
6 to conduct a biannual review of all aspects of school bus safety and to
7 issue recommendations for additional action or oversight, as appropri-
8 ate;

9 c. developing a plan to phase in any school bus safety measures recom-
10 mended by the task force through retrofitting and prospective vehicle
11 purchases, and identify the potential application of vehicle sensor
12 technology to improve school bus safety;

13 d. identifying best practices for the designation of school bus stops;

14 e. the current safety status of students who walk to and from school
15 and identify strategies that support safe pedestrian behavior by
16 students between their homes and schools, including as they walk to and
17 from bus stops and board and exit buses;

18 f. identifying safety protocols to be followed by school bus drivers
19 and school bus aides, including safeguards to ensure that protocols are
20 followed when a substitute driver or school bus aide is assigned to a
21 school bus;

22 g. developing recommendations to curb illegal passing of school buses;
23 and

24 h. determining if there is a need for additional public education
25 programs that promote school bus safety.

26 4. Vacancies in the membership of the task force shall be filled in
27 the same manner as the original appointments were made. The members of
28 the task force shall serve without compensation but may be reimbursed
29 for necessary expenses incurred in the performance of their duties.

30 5. The task force shall organize as soon as is practical upon the
31 appointment of a majority of its members. The chair of the task force
32 shall be designated by a simple majority vote of all members of the task
33 force.

34 6. The department shall provide staff and related support services to
35 the task force. The task force shall also be entitled to call upon the
36 services of any state, county, or municipal department, board, commis-
37 sion or agency, as may be available to it for these purposes, and to
38 incur such traveling and other miscellaneous expenses as it may deem
39 necessary for the proper execution of its duties and as may be within
40 the limit of funds appropriated or otherwise made available to it for
41 these purposes. The task force may meet and hold hearings at such places
42 as it shall designate.

43 7. The task force shall create a final report regarding all findings
44 and recommendations to be delivered no later than eighteen months after
45 the effective date of this section, to the governor, the temporary pres-
46 ident of the senate, the speaker of the assembly, the chair of the
47 senate education committee, the chair of the assembly education commit-
48 tee, the chair of the senate transportation committee and the chair of
49 the assembly transportation committee.

50 § 2. This act shall take effect immediately and shall expire and be
51 deemed repealed twenty-four months after it shall have become a law.